

Tamil Nadu Minor Inams (Abolition and Conversion Into Ryotwari) Rules, 1976

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State of Tamilnadu- Act

Tamil Nadu Minor Inams (Abolition and Conversion Into Ryotwari) Rules, 1976

TAMILNADU

India

Tamil Nadu Minor Inams (Abolition and Conversion Into Ryotwari) Rules, 1976

Act 411 of 1976

Published on 13 October 1976

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Tamil Nadu Minor Inams (Abolition and Conversion Into Ryotwari) Rules, 1976

Published vide Notification No. G.O. Ms. No. 1439, Commercial Taxes and Religious Endowments, Dated 13th October 1976 - S.R.O. No. A-411 of 1976

Published in Tamil Nadu Government Gazette, Part III, Section 1(a), page 684, dated 3rd November, 1976.

G.O. Ms. No. 1439. - In exercise of the powers conferred by section 48 read with section 47-A of the Tamil Nadu. Minor Inams (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act 30 of 1963

), the Governor of Tamil Nadu hereby makes the following rules : -

1.

Short title.

- These rules may be called the Tamil Nadu Minor Inams (Abolition and Conversion Into Ryotwari) Rules, 1976.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the Tamil Nadu Minor Inams (Abolition and Conversion into Ryotwari) Act, 1963 (Tamil Nadu Act 30 of 1963

);

(b)

"Amendment Act" means the Tamil Nadu Inam Estates and Minor Inams (Abolition and Conversion into Ryotwari) Amendment Act, 1975 (Tamil Nadu Act 32 of 1975);

(c)

"Form" means a form appended to these rules;

(d)

"Rent" means the arrears of fair rent due under sub-section (4) of section 47-A of the Act.

3.

Deposit of rent in Courts.

(1)

The rent shall be paid to the owner or deposited in Court in three instalments in the manner specified under these rules within a period of one year.

(2)

Every cultivating tenant desirous of depositing the rent shall deposit the same in the Reserve Bank of India, if the land is situated in the City of Chennai and in the nearest Treasury or Sub-Treasury, if the land is situated elsewhere.

4.

Procedure for deposit of rent in Court.

- The chalan accompanying the deposit shall be in M.T.C. Form 10 in triplicate and shall specify as nearly as possible the following particulars : -

(a)

Name and address of the cultivating tenant depositing the rent.

(b)

Name and address of the owner or owners of the land to whom the rent is due.

(c)

The Head of Account to which the rent is credited namely :-

"Deposits and Advances, etc., Civil Deposits, Civil Court Deposits, Deposits by Cultivating Tenants under the Tamil Nadu Minor Inams (Abolition and Conversion into Ryotwari) Act, 1963"

5.

Application for deposit of rent.

- Every cultivating tenant depositing the rent shall make an application to the Court in Form I together with the chalan for the deposit of the amount into the Reserve Bank of India or the Treasury or the Sub-Treasury as the case may be, in person or through his authorized agent.

6.

Notice to the owners of the land.

- On receipt of the application under rule 5, the Court shall fix a date for hearing the application and shall cause a notice of the date so fixed to be served on the owner or owners of the land mentioned in the application.

7.

Procedure for the disbursement of the rent deposited by the cultivating tenant.

(1)

On the dates fixed under rule 6 or on any subsequent date to which the hearing may be adjourned, the owner of the land may appear in person or through his authorized agent.

(2)

If the owner of the land admits the correctness of the averments made in the application he may file a petition expressing his willingness to accept the money deposited in full discharge of such rent and receive the money so deposited.

(3)

If the owner of the land does not admit the correctness of the averments in the application he may file a counter-statement verified in the manner prescribed by the Code of Civil Procedure, 1908 (Central Act 5 of 1908), and the Court shall thereupon, after taking such evidence or making such enquiry as may be deemed necessary, pass orders on the application in accordance with the provisions of the Act.

Form I

(See rule 5)

Application for Deposit of rent under section 47-A(5) of the Tamil Nadu Minor Inams (Abolition and Conversion into Ryotwari) Act, 1963

(Tamil Nadu Act

30 of 1963

).

(1)

Name and address of the cultivating tenant

(2)

Particulars of lands cultivated.

Name of the village and taluk

Survey Number

Local name if any

Classification (wet, dry, Garden, manavari)

Extent

1

2

3

4

5

Total

(3)

(a)

Total amount of rent due and the period for which the arrears of rent relates,

(b)

The market value of the rent if it is payable in kind.

(4)

Name and address of the owner of the land to whom rent is due.

(5)

Amount of rent deposited and the period to which it relates.

(6)

Remarks.

Palce:Date

Signature of the applicant.

Declaration of the Applicant

I declare that I am a cultivating tenant entitled to the benefits provided under section 47-A of the said Act.

Signature of the applicant.

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